(1964); *Thomas* v. *Collins,* 323 U. S., at 533; *Murdock* v. *Pennsylvania,* 319 U. S. 105, 111 (1943); *Jamison* v. *Texas,* 318 U. S. 413, 417 (1943).

Since the decision in *Breard,* however, the Court has never *denied* protection on the ground that the speech in issue was "commercial speech." That simplistic approach, which by then had come under criticism or was regarded as of doubtful validity by Members of the Court,[16] was avoided in *Pittsburgh Press Co.* v. *Human Relations Comm'n,* 413 U. S. 376 (1973). There the Court upheld an ordinance prohibiting newspapers from listing employment advertisements in columns according to whether male or female employees were sought to be hired. The Court, to be sure, characterized the advertisements as "classic examples of commercial speech," *id.,* at 385, and a newspaper's printing of the advertisements as of the same character. The Court, however, upheld the ordinance on the ground that the restriction it imposed was permissible because the discriminatory hirings proposed by the advertisements, and by their newspaper layout, were themselves illegal.

Last Term, in *Bigelow* v. *Virginia,* 421 U. S. 809 (1975), the notion of unprotected "commercial speech" all but passed from the scene. We reversed a conviction for violation of a Virginia statute that made the circulation of any publication to encourage or promote the

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[16] See *Bigelow* v. *Virginia,* 421 U. S., at 820 n. 6, citing Mr. Justice Douglas' observation in *Cammarano* v. *United States,* 358 U. S. 498, 514 (1959) (concurring opinion), that the *Chrestensen* ruling "was casual, almost offhand. And it has not survived reflection"; the similar observation of four Justices in dissent in *Lehman* v. *City of Shaker Heights,* 418 U. S. 298, 314 n. 6 (1974); and expressions of three Justices in separate dissents in *Pittsburgh Press Co.* v. *Human Relations Comm'n,* 413 U. S., at 393, 398, and 401. See also Mr. Justice Douglas' comment, dissenting from the denial of certiorari in *Dun & Bradstreet, Inc.* v. *Grove,* 404 U. S. 898, 904–906 (1971).